

Amendment No. 1 to SB0861

Gardenhire

Signature of Sponsor

AMEND Senate Bill No. 861

House Bill No. 910

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 21, is amended by deleting Part 1 and substituting:

4-21-101. Purpose.

It is the purpose and intent of this chapter to:

(1) Provide for execution within this state of the policies embodied in the federal Civil Rights Acts of 1964, 1968, and 1972; the Pregnancy Discrimination Act of 1978 (42 U.S.C. § 2000e(k)); the Age Discrimination in Employment Act of 1967 (29 U.S.C. § 621 et seq.); and the Pregnant Workers Fairness Act (42 U.S.C. § 2000gg);

(2) Assure that this state has appropriate legislation prohibiting discrimination in employment, public accommodations, and housing sufficient to justify the deferral of cases by the federal equal employment opportunity commission, the department of housing and urban development, the secretary of labor, and the department of justice under those statutes;

(3) Provide state-level protections and enforcement and supplement existing federal law, against unlawful discrimination in connection with employment, public accommodations, housing, and education;

(4) Protect all individuals' interest in personal dignity and freedom from humiliation;

(5) Make available to the state all individuals' full productive capacity in employment;

(6) Secure the state against domestic strife and unrest that would menace its democratic institutions;

(7) Preserve the public safety, health, and general welfare; and

(8) Further the interest, rights, opportunities, and privileges of individuals within the state.

4-21-102. Part definitions.

As used in this chapter, unless the context otherwise requires:

(1) "Attorney general" means the office of the attorney general and reporter, the attorney general and reporter, or the attorney general and reporter's designee;

(2) "Commission" means the Tennessee human rights commission;

(3) "Complainant" means the attorney general or a person who files a complaint alleging a discriminatory practice in violation of this chapter;

(4) "Director" means the director of the office of the attorney general and reporter's civil rights enforcement division;

(5) "Disability" means the same as the term is defined in 42 U.S.C. §§ 12102, 12208, 12210, and 12211 as effected in 2009, but does not include current, illegal use of, or addiction to, a controlled substance or controlled substance analogue;

(6) "Discriminatory practice" means:

(A) A direct or indirect act or practice of exclusion, distinction, restriction, segregation, limitation, refusal, denial, or other act or practice of differentiation or preference in the treatment of a person or persons because of race, creed, color, religion, sex, national origin, or another basis prohibited by this chapter; or

(B) An act or practice in furtherance of such differentiation or preference;

(7) "Division" means the civil rights enforcement division in the office of the attorney general and reporter;

(8) "Employer" means a person employing eight (8) or more individuals within this state, or a person acting as an agent of an employer, directly or indirectly;

(9) "Employment agency" means a person, public or private, who regularly undertakes, with or without compensation, to procure employees for an employer or to procure for employees opportunities to work for an employer;

(10) "Familial status" means one (1) or more individuals, who have not attained eighteen (18) years of age, being domiciled with:

(A) A parent or another individual having legal custody of such individual or individuals; or

(B) The designee of such parent or other individual having such custody, with the written permission of such parent or other person. The protections against discrimination on the basis of familial status apply to an individual who is pregnant or who is in the process of securing legal custody of an individual who has not attained eighteen (18) years of age;

(11) "Family" includes a single individual;

(12) "Financial institution" means a bank, banking organization, mortgage company, insurance company, or other lender to whom application is

made for financial assistance for the purchase, lease, acquisition, construction, rehabilitation, repair, maintenance, or improvements of real property, or an individual employed by or acting on behalf of such institution;

(13) "Housing accommodation" includes improved and unimproved property and means a building, structure, lot, or part thereof that is used or occupied, or is intended, arranged, or designed to be used or occupied, as the home or residence of one (1) or more individuals;

(14) "Labor organization" includes an organization that exists for the purpose, in whole or in part, of collective bargaining or of dealing with employers concerning grievances, terms or conditions of employment, or for other mutual aid or protection in relation to employment or an agent acting for organizations;

(15) "National origin" includes the national origin of an ancestor;

(16) "Person" includes one (1) or more individuals, governments, governmental agencies, public authorities, labor organizations, corporations, legal representatives, partnerships, associations, trustees, trustees in bankruptcy, receivers, mutual companies, joint stock companies, trusts, unincorporated organizations, or other entities however organized;

(17) "Places of public accommodation, resort, or amusement":

(A) Includes a place, store, or other establishment, either licensed or unlicensed, that supplies goods or services to the general public or that solicits or accepts the patronage or trade of the general public, or that is supported directly or indirectly by government funds; and

(B) Does not include a bona fide private club if the club's policies are determined solely by its members and the club's facilities or services are available only to the club's members and their bona fide guests;

(18) "Real estate broker" or "real estate salesperson" means an

individual, whether licensed or not, who, on behalf of others, for a fee, commission, salary, or other valuable consideration, or who with the intention or expectation of receiving or collecting the same, lists, sells, purchases, exchanges, rents, or leases real estate, or the improvements thereon, including options, or who negotiates or attempts to negotiate on behalf of others such activity; or who advertises or holds such individual out as engaged in such activities; or who negotiates or attempts to negotiate on behalf of others a loan secured by mortgage or other encumbrance upon a transfer of real estate; or who is engaged in the business of charging an advance fee or contracting for collection of a fee in connection with a contract whereby such individual undertakes to promote the sale, purchase, exchange, rental, or lease of real estate through its listing in a publication issued primarily for such purpose; or an individual employed by or acting on behalf of such broker or salesperson;

(19) "Real estate operator" means an individual or combination of individuals, labor unions, joint apprenticeship committees, partnerships, associations, corporations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees in bankruptcy, receivers, or other legal or commercial entities, or the county or its agencies, that is engaged in the business of selling, purchasing, exchanging, renting, or leasing real estate, or the improvements thereon, including options, or that derives income, in whole or in part, from the sale, purchase, exchange, rental, or lease of real estate; or an individual employed by or acting on behalf of such operators;

(20) "Real estate transaction" includes the sale, exchange, rental, or lease of real property;

(21) "Real property" includes buildings, structures, real estate, lands, tenements, leaseholds, cooperatives, condominiums, and hereditaments,

corporeal and incorporeal, or an interest in such property;

(22) "Respondent" means an employer, employment agency, labor organization, joint housing accommodation, person, school, or other entity subject to this chapter that is alleged to have committed a discriminatory practice in violation of this chapter in a complaint or subject to an investigation by the attorney general;

(23) "School" means:

(A) An elementary or middle school as defined in § 49-6-301;

(B) A junior high school or senior high school as defined in § 49-6-401;

(C) A college or a certificate program as defined in § 49-7-2003;

(D) A public charter school as defined in § 49-13-104; and

(E) All public and nonpublic schools as defined in § 49-6-3001;

(24) "Sex" has the same meaning as defined in § 1-3-105; and

(25) "Violation" means a practice or discrete act prohibited by this chapter.

SECTION 2. Tennessee Code Annotated, Title 4, Chapter 21, is amended by deleting Part 2 and substituting:

4-21-201. Creation of the Tennessee human rights commission.

(a) There is created the Tennessee human rights commission.

(b)

(1) The commission consists of nine (9) members to be appointed as follows:

(A) The speaker of the senate shall appoint three (3) members;

(B) The speaker of the house of representatives shall appoint three (3) members; and

(C) The governor shall appoint three (3) members.

(2) The appointing authorities in subdivisions (b)(1)(A)-(C) shall each appoint one (1) member from each grand division of the state.

(c)

(1) Except for initial appointments, which are to be staggered and may be for terms of four (4) years or less, appointments to the commission are for terms of four (4) years and begin on July 1 and terminate on June 30, four (4) years thereafter.

(2) Each member serves until the expiration of the term to which the member is appointed and until the member's successor is appointed and qualified.

(3) A vacancy occurring other than by expiration of a term must be filled in the same manner as the original appointment but for the unexpired term only.

(4) A successor must be appointed from the same grand division of the state in which the member being replaced resides.

(5)

(A) Excluding the initial terms, a member is eligible for reappointment to the commission following the expiration of the member's term, but may serve no more than two (2) consecutive four-year terms.

(B) An initial term that is a four-year term is considered a four-year term served under subdivision (c)(5)(A).

(d) The commission shall designate one (1) member to serve as chair for a two-year term. A member may serve as chair for up to two (2) consecutive two-year terms, and is eligible to be reappointed as chair after a minimum two-year break in service.

(e) Members must be appointed on a nonpartisan basis and must be broadly representative of employees, proprietors, trade unions, religious groups, human rights groups, and the general public.

(f) Members are entitled to reimbursement for expenses incurred in the performance of their duties and to reasonable fees for each day of service as hearing examiners.

(g)

(1) A member who misses more than fifty percent (50%) of the scheduled meetings in a calendar year must be removed as a member of the commission.

(2) The chair of the commission shall promptly notify, or cause to be notified, the appointing authority of a member who fails to satisfy the attendance requirement as prescribed in subdivision (g)(1) of the need for a new appointment.

(h) Notwithstanding a provision of the Tennessee Governmental Entity Review Law, compiled in chapter 29 of this title, to the contrary, the commission shall provide a detailed accounting of its finances and a comprehensive analysis of how the commission is adhering to the requirements of this chapter to the division of audit within the office of the comptroller of the treasury, the chair of the committee of the house of representatives having jurisdiction over subject matters pertaining to government operations, and the chair of the government operations committee of the senate no later than January 15 of each year for review.

(i) This section is repealed on July 1, 2025.

4-21-202. Powers and duties of the commission.

(a) In the enforcement of this chapter, the commission has the power and duty to:

(1) Maintain offices in Shelby County, Davidson County, Knox County, Hamilton County, and such other offices within this state as may be deemed necessary;

(2) Meet and exercise its powers within this state;

(3) Annually appoint an executive director, fix the director's compensation with the approval of the governor, and delegate the commission's functions and duties to the director in the interest of efficient management of the appropriations and resources of the agency. Prior to the reappointment of an executive director under this subdivision (a)(3), the commission shall conduct a comprehensive review of the executive director's performance for the preceding twelve (12) months. The commission shall develop measurable goals or benchmarks, or both, in determining whether to reappoint an executive director pursuant to the comprehensive review;

(4) Promote the creation of local commissions on human rights, to cooperate with state, local and other agencies, both public and private, and individuals, and to obtain upon request and utilize the services of all governmental departments and agencies;

(5) Enter into cooperative working agreements with local commissions that have enforceable ordinances, orders, or resolutions and professional staff;

(6) Cooperate with the federal equal employment opportunity commission created under § 705 of the Civil Rights Act of 1964 (42 U.S.C. § 2000e-4), and with the department of housing and urban development in enforcing the Fair Housing Act of 1968 (42 U.S.C. § 3601 et seq.), in order to achieve the purposes of those acts, and with other federal and local agencies in order to achieve the purposes of this chapter;

(7) Accept and disburse gifts and bequests, grants, or other payments, public or private, to help finance its activities;

(8) Accept reimbursement pursuant to § 709(b) of the Civil Rights Act of 1964 (42 U.S.C. § 2000e-8), and pursuant to § 816 of the Fair Housing Act of 1968 (42 U.S.C. § 3616), for services rendered to assist the federal equal employment opportunity commission and the department of housing and urban

development;

(9) Receive, initiate, investigate, seek to conciliate, hold hearings on, and pass upon complaints alleging violations of this chapter;

(10) Require answers to interrogatories, compel the attendance of witnesses, examine witnesses under oath or affirmation in person by deposition, and require the production of documents relevant to the complaint. The commission may make rules authorizing or designating a member or individual to exercise these powers in the performance of official duties;

(11) Furnish technical assistance requested by persons subject to this chapter to further their compliance with this chapter or an order issued under this chapter;

(12) Make studies appropriate to effectuate the purposes and policies of this chapter and make the results of such studies available to the public;

(13) Render, in accordance with the rules, policies, and procedures of the state publications committee, a written report. The report may contain recommendations of the commission for legislative or other action to effectuate this chapter;

(14) Adopt, promulgate, amend, and rescind rules to effectuate this chapter, including requiring the posting of notices prepared or approved by the commission;

(15) Cooperate with community, professional, civic, and religious organizations, federal agencies, and agencies from other states in the development of public information programs, leadership, and activities in the interest of equal opportunity and treatment of all individuals;

(16)

(A) Create local or statewide advisory agencies that in its judgment will aid in effectuating this chapter. The commission may

empower these agencies to:

(i) Study and report on problems of discrimination because of race, creed, color, religion, sex, age, or national origin;

(ii) Foster through community effort or otherwise, goodwill among the groups and elements of the population of this state; and

(iii) Make recommendations to the commission for the development of policies and practices that will aid in carrying out this chapter;

(B) Members of such advisory agencies serve without pay, but are reimbursed for expenses incurred in such services. The commission may make provision for technical and clerical assistance to the advisory agencies; and

(17) Conduct tests of housing accommodations and availability through the use of staff, both full time and part time, and of volunteers to ascertain the availability of housing, both in sales and also in rentals of real property.

(b)

(1) Notwithstanding this section or a rule or policy to the contrary, an office, executive committee, local commission, advisory agency, or other entity or persons appointed by or serving at the recommendation of the commission shall not exercise more authority than the commission.

(2) An office, executive committee, local commission, advisory agency, and other entity or person appointed by or serving at the recommendation of the commission shall transmit copies, records, information, and other material obtained by such entities to the commission within five (5) business days of receipt.

(c) All powers and duties granted to the commission in this chapter are subject to oversight and approval by the attorney general.

(d) This section is repealed on July 1, 2025.

4-21-203. Creation of the civil rights enforcement division – Director.

(a) There is created a civil rights enforcement division in the office of the attorney general and reporter. The offices of the division are to be located in a place to be determined by the attorney general. The attorney general is authorized to hire, fire, supervise, direct, and control the personnel and activities of the division, and the employees of the division are employees of the office of the attorney general and reporter for the purposes of title 8, chapter 6.

(b) The division is headed by a director of civil rights enforcement who is appointed by, and serves at the pleasure of, the attorney general.

(c) The division is funded from the general fund as appropriated in the general appropriations act. This section notwithstanding, effective July 1, 2025, all funding for employment positions allocated to the commission prior to such date must be transferred to the office of the attorney general and reporter. The attorney general has discretion to determine how and whether to utilize these positions.

4-21-204. Powers and duties.

(a) The attorney general is authorized to employ such personnel as may be necessary and appropriate for the division to accomplish the purposes of this chapter.

(b) The attorney general may receive, initiate, investigate, seek to conciliate, refer, and pass upon complaints alleging violations of this chapter.

(c) The attorney general may bring an appropriate action or proceeding in a court of competent jurisdiction to achieve the purposes of this chapter.

(d) The attorney general may cooperate with the federal equal employment opportunity commission created under § 705 of the Civil Rights Act of 1964 (42 U.S.C. § 2000e-4), and with the department of housing and urban development in enforcing

the Fair Housing Act of 1968 (42 U.S.C. § 3601 et seq.), in order to achieve the purposes of those acts, and with other federal and local agencies in order to achieve the purposes of this chapter.

(e) The director shall develop and implement a process to receive complaints of violations of this chapter and publish such process on the office of the attorney general and reporter's website.

(f) The attorney general's powers and duties under this chapter must be exercised in conjunction with and in furtherance of the attorney general's authority as provided in title 8, chapter 6, part 4. The attorney general, in accordance with these provisions, may take appropriate action to enforce this chapter, including, but not limited to, initiating or participating in legal proceedings, issuing civil investigative demands, and utilizing other powers granted under state law to investigate and remedy violations.

(g) In an action brought by the attorney general under this chapter, the attorney general is deemed to lack possession, custody, or control over documents possessed by the general assembly, other state officers, or state agencies or institutions.

(h) In an action brought by the attorney general under this chapter, if the attorney general does not seek to recover for an injury suffered by a state governmental branch or office, official, agency, political subdivision, or other instrumentality, then the nonparty discovery of that entity is presumptively unreasonable and unduly burdensome.

4-21-205. Investigations – Requests for information – Penalties for noncompliance.

(a) If the attorney general has reason to believe that a person is engaging in or has engaged in an act or practice in violation of this chapter, or that it is in the public interest to conduct an investigation to ascertain whether a person is engaging in, has engaged in, or is about to engage in an act or practice in violation of this chapter, then the attorney general may:

(1) Require a person with information relevant to the subject matter of the investigation to file a statement or report in writing, under oath or otherwise, that contains all the facts and circumstances about the alleged discriminatory act and to furnish and make available for examination all documentary material and information relevant to the subject matter of the investigation; and

(2) Examine, under oath, a person with information relevant to the subject matter of the investigation.

(b) Prior to the return date specified in the attorney general's request for information pursuant to subsection (a), or within ten (10) days following notice of the request, whichever is shorter, a person from whom information has been requested may petition the chancery court or circuit court in a county in which the subject of the complaint occurs, or in a county in which a respondent resides or has the respondent's principal place of business, stating good cause, for a protective order to extend the return date for a reasonable time, or to modify or set aside the request. The attorney general must receive at least one (1) day's notice of such a petition and must be given an opportunity to respond.

(c) If a protective order from the court is not secured and the written request by the attorney general is not complied with by its return date, then the attorney general, upon notice to the person requested to provide information, may apply to the chancery court of Davidson County or Williamson County, or a court of competent jurisdiction for an order compelling compliance with the request made pursuant to subsection (a).

(d) Upon a showing by the attorney general that there are reasonable grounds to believe this chapter has been, is being, or is about to be violated and that the person who has violated, is violating, or is about to violate this chapter, or possess the relevant documentary material has left the state or is about to leave the state, a court of competent jurisdiction in this state may order such persons to comply with subsection (a) if the order is necessary for the enforcement of this part, whether the attorney general

has made a prior request for information or not. Notwithstanding another law to the contrary, the court may immediately and without notice, forbid the removal from a place, concealment, withholding, destruction, mutilation, falsification, or alteration by other means of documentary material in the possession, custody, or control of a person believed by the attorney general to be connected with acts or practices that violate this chapter.

(e) A person who has received notice of a request for information pursuant to subsection (a), or of an order pursuant to subsections (c) or (d), and, with intent to avoid, evade, or prevent compliance, in whole or in part, with a civil investigation or order under this part, removes from a place, conceals, withholds, destroys, mutilates, falsifies or, by other means, alters documentary material in the possession, custody, or control of a person subject to such notice, is subject to a civil penalty of not more than five thousand dollars (\$5,000) per violation, recoverable by the state in addition to any other appropriate sanction.

(f) Documentary material requested pursuant to this section must be produced for inspection and copying during normal business hours at the principal office or place of business of the person possessing such documentary material or merchandise, or at such other time and place as may be agreed to by the possessor and the attorney general.

(g)

(1) Unless otherwise ordered by the court for good cause shown, documentary material or other information obtained pursuant to a request under this section must not be produced for inspection, copied by, or its contents disclosed to, a person other than an authorized representative of the attorney general for the purpose of prosecution without the consent of the person who produced the material or information.

(2) The attorney general may use copies of the documentary material

produced in accordance with this section as it determines necessary in the enforcement of this part, including the presentation of such material before a court.

(3) All other documentary material, answers to written interrogatories, and transcripts of oral testimony that are voluntarily provided to the attorney general as part of an investigation under this section must be treated as if such information was obtained pursuant to a request issued under this section if such materials were obtained pursuant to an investigative demand or similar process issued by another state or federal attorney general, obtained from a state or federal attorney general pursuant to a statutory obligation to produce, or provided by a person with information relevant to the subject matter of the investigation.

(4) All material compiled by the attorney general in an investigation under this section is exempt from public disclosure pursuant to title 10, chapter 7, as amended, except to the extent the attorney general chooses to disclose the material in the discharge of the attorney general's official duties.

(h) In conducting an inquiry pursuant to this section, the attorney general, whenever such aid is determined to be necessary and desirable, may request the aid of an agency of the state, and the agency, as requested, must give full aid, support, and cooperation to the attorney general in the investigation.

(i) Service of any notice, order, or request for information by the attorney general may be made in compliance with the Tennessee Rules of Civil Procedure or by:

(1) Delivering a duly executed copy of the notice, order, or request for information to the person to be served, or to a partner, officer, or agent authorized by appointment or by law to receive service of process on behalf of the person to be served;

(2) Mailing a duly executed copy of the notice, order, or request for

information by registered or certified mail addressed to the person, to be served at the person's principal place of business in this state, or if the person has no place of business within this state, to the person's principal office, place of business, home, or last known address; or

(3) Personal service, pursuant to §§ 20-2-214 – 20-2-220.

SECTION 3. Tennessee Code Annotated, Title 4, Chapter 21, is amended by deleting Part 3 and substituting:

4-21-301. Retaliation.

(a) It is a violation of this chapter for a person to retaliate or discriminate against another person because such person has opposed a discriminatory practice in violation of this chapter or because such person has made a charge, filed a complaint, testified, assisted or participated in an investigation, proceeding, or hearing under this chapter.

(b) An individual employee or agent of an employer is not liable for a violation of this section that an employer is found to have committed.

4-21-302. Injunctions and other relief.

(a)

(1) If the attorney general has reason to believe that a person has engaged in, is engaging in, or is about to engage in an act or practice in violation of this chapter, then the attorney general may bring an action in the name of the state or on behalf of the complainant against such person to restrain, by temporary restraining order, temporary injunction, or permanent injunction, the use of such act or practice.

(2) The attorney general may file an action pursuant to this section in the chancery court or circuit court in a county in which the alleged violation occurred or is about to occur, in a county in which the respondent resides or has the respondent's principal place of business, or another chancery court or circuit court of competent jurisdiction over respondent.

(b)

(1) A court may issue orders and injunctions to restrain and prevent violations of laws enforceable by the attorney general, and such orders and injunctions must be issued without bond.

(2)

(A) A court may grant or deny the relief sought on conditions the court deems just and equitable, including payment to the state of a civil penalty of not more than five thousand dollars (\$5,000) for each discrete violation. If an act or practice injures more than one (1) person, then a separate violation occurs for each person injured.

(B) If a court finds that a violation was intentional, or that the respondent has engaged in a pattern and practice of violations, then the court may order payment to the state of a civil penalty of not more than fifteen thousand dollars (\$15,000) for each discrete violation. If an act or practice injures more than one (1) person, then a separate violation occurs for each person injured.

(C) In cases involving discriminatory housing practices only, the court may order payment by the respondent of a civil penalty in an amount not exceeding:

(i) Ten thousand dollars (\$10,000) if the respondent has not been adjudged to have committed prior unlawful discriminatory housing practices;

(ii) Twenty-five thousand dollars (\$25,000) if the respondent has been adjudged to have committed one (1) other unlawful discriminatory housing practice during the five-year period ending on the date of the filing of the complaint; or

(iii) Fifty thousand dollars (\$50,000) if the respondent has been adjudged to have committed two (2) or more unlawful discriminatory housing practices during the seven-year period ending on the date of the filing of the complaint.

(D) If the acts constituting the discriminatory housing practice that is the object of the complaint are committed by the same natural person who was previously adjudged to have committed acts constituting an unlawful discriminatory housing practice, then the civil penalties set forth in subdivisions (b)(2)(C)(ii) and (iii) may be imposed without regard to the period of time within which a subsequent discriminatory housing practice occurred.

(3) A court may award affirmative relief including, but not limited to:

(A) Hiring, reinstatement, or upgrading of employees with or without back pay. Interim earnings or amounts earnable with reasonable diligence by the person or persons discriminated against must operate to reduce the back pay otherwise allowable;

(B) Admission or restoration of individuals to union membership, admission to, or participation in, a guidance program, apprenticeship, training program, on-the-job training program, or other occupational training or retraining program, and the utilization of objective criteria in the admission of individuals to such programs;

(C) Admission of individuals to places of public accommodation, resort, or amusement;

(D) The extension to all individuals of the full and equal enjoyment of the advantages, facilities, privileges, and services of the respondent;

(E) Reporting as to the manner of compliance;

(F) Posting notices in conspicuous places in the respondent's place of business in the form prescribed by the commission and inclusion of such notices in advertising material;

(G) Payment to the complainant of damages for an injury, including humiliation and embarrassment, caused by the discriminatory practice, and cost, including reasonable attorneys' fees; and

(H) Such other remedies as are necessary and proper to eliminate discriminatory violations of this chapter.

(c) A court may also order reimbursement to the attorney general for the reasonable costs and expenses of investigation and prosecution of actions under this chapter, including attorneys' fees.

(d) In the course of an action brought pursuant to subsection (a), the court may order the parties to engage in mediation, with the costs of the mediation being borne equally by the parties. If a party requests the court to order the parties to mediation, then the requesting party bears the costs of the mediation, unless both parties agree to bear the costs.

(e) A knowing violation of the terms of an injunction or order issued pursuant to this section is punishable by a civil penalty of not more than two thousand dollars (\$2,000) per day for each violation, recoverable by the state, in addition to other appropriate relief.

(f) Whenever a permanent injunction is issued by a court in connection with an action that has become final, reasonable costs and expenses of investigation and prosecution of actions under this chapter, including attorneys' fees, must be awarded, unless the parties agree otherwise,

4-21-303. Conciliation – Conciliation agreement.

(a) After the attorney general receives a complaint pursuant to this chapter, or when the attorney general has reason to believe a person has engaged in, is engaging

in, or is about to engage in a violation of this chapter, the attorney general may negotiate and accept a conciliation agreement regarding an act or practice considered to violate this chapter, from a person who allegedly has engaged in, is engaging in, or is about to engage in the act or practice.

(b) A conciliation agreement is an agreement between a respondent and a complainant or the state and must be approved by the director or the attorney general.

(c) A conciliation agreement is not considered an admission of a prior violation of this chapter. However, unless a conciliation agreement has been rescinded by agreement of the parties with approval by the director or the attorney general, or voided by a court for good cause, a subsequent failure to comply with the terms of the assurance is prima facie evidence of a violation of this chapter.

(d) Except for the terms of the conciliation agreement, the attorney general, or an officer or employee of the office of the attorney general and reporter, shall not make public, without the written consent of the complainant and the respondent, information concerning efforts in a case to eliminate discriminatory practice by conference, conciliation, or persuasion, regardless of whether there is a conciliation agreement. The conciliation agreement must not be made public without the agreement of the complainant and the respondent, and the determination by the attorney general that disclosure is not required to further this chapter.

(e) At the expiration of one (1) year from the date of a conciliation agreement, and at other times in the attorney general's reasonable discretion, the attorney general may investigate whether the terms of the agreement have been and are being complied with by the respondent.

(f) Any knowing violation of the terms of a conciliation agreement, unless it has been rescinded by agreement of the parties with approval by the director or the attorney general, or voided by a court for good cause, is punishable by a civil penalty of not more

than two thousand dollars (\$2,000) per day for each violation, recoverable by the state, in addition to any other appropriate relief.

4-21-304. Hearings.

(a)

(1) In a complaint involving discrimination in employment and public accommodations, within ninety (90) days after an administrative determination of reasonable cause to believe that discrimination took place, unless the commission has issued an order stating the terms of a conciliation agreement, or in those cases in which the terms of a conciliation agreement have been kept confidential the commission has issued an order stating that the case has been satisfactorily conciliated, the commission shall serve on the respondent by mail or in person a written notice, together with a copy of the complaint as it may have been amended, or a copy of the letter of determination, requiring the respondent to answer the allegation of the complaint at a hearing before a hearing examiner or hearing examiners, or another individual pursuant to its rules, at a time and place specified by the hearing examiner or examiners after conference with the parties or their attorneys.

(2) A copy of the notice must be furnished to the complainant, and such public officers and persons as the commission deems proper.

(3) In a complaint involving housing discrimination only, if the commission has determined there is reasonable cause to believe that the respondent has engaged in a discriminatory housing practice, and if the complaint has not been resolved through a conciliation agreement, then the commission shall commence a hearing in accordance with this subsection (a).

(4) All hearings conducted under this section must be in accordance with the Uniform Administrative Procedures Act, compiled in chapter 5, part 3 of this title.

(b) A member of the commission who filed the complaint or endeavored to eliminate the alleged discriminatory practice by conference, conciliation, or persuasion shall not participate in the hearing or in the subsequent deliberation of the commission.

(c) The respondent may file an answer with the commission by registered or certified mail pursuant to the rules of the commission before the hearing date. The respondent may amend an answer prior to the issuance of an order based on the complaint, but an order must not be issued unless the respondent has had an opportunity of a hearing on the complaint or amendment on which the order is based.

(d) A respondent who has filed an answer or whose default in answering has been set aside for good cause shown, may appear at the hearing with or without representation, may examine and cross-examine witnesses and the complainant, and may offer evidence.

(e) The complainant and the complainant's private attorney, and, in the discretion of the commission, any person, may intervene, examine, and cross-examine witnesses, and present evidence.

(f) If the respondent fails to answer the complaint, then the commission may enter the respondent's default. Unless the default is set aside for good cause shown, the hearing may proceed on the evidence in support of the complaint.

(g) Efforts at conference, conciliation, and persuasion must not be received in evidence.

(h) Testimony taken at the hearing must be under oath and transcribed. If the testimony is not taken before the commission, then the record must be transmitted to the commission.

(i) In a proceeding under this chapter, the production of a written, printed or visual communication, advertisement or other form of publication, or a written inquiry, or record, or other document purporting to have been made by a person is prima facie evidence that it was authorized by the person.

(j) This section applies only to matters pending before the commission prior to July 1, 2025, and is repealed and of no legal effect on or after such date.

4-21-305. Findings of fact – Conclusions of law – Orders.

(a) If the commission determines that the respondent has not engaged in a discriminatory practice, then the commission shall state its findings of fact and conclusions of law and shall issue an order dismissing the complaint. A copy of the order must be delivered to the complainant, the respondent, and such public officers and persons as the commission deems proper.

(b) If the commission determines that the respondent has engaged in a discriminatory practice, then the commission shall state its findings of fact and conclusions of law and shall issue an order requiring the respondent to cease and desist from the discriminatory practice and to take such affirmative action as in the judgment of the commission will carry out this chapter. A copy of the order must be delivered to the respondent, the complainant, and to such public officers and persons as the commission deems proper.

(c) This section applies only to matters pending before the commission prior to July 1, 2025, and is repealed and of no legal effect on or after such date.

4-21-306. Remedies.

(a) Affirmative action ordered under this section includes, but is not limited to:

(1) Hiring, reinstatement, or upgrading of employees with or without back pay. Interim earnings or amounts earnable with reasonable diligence by the person or persons discriminated against must operate to reduce the back pay otherwise allowable;

(2) Admission or restoration of individuals to union membership, admission to, or participation in, a guidance program, apprenticeship, training program, on-the-job training program, or other occupational training or retraining

program, and the utilization of objective criteria in the admission of individuals to such programs;

(3) Admission of individuals to places of public accommodation, resort, or amusement;

(4) The extension to all individuals of the full and equal enjoyment of the advantages, facilities, privileges, and services of the respondent;

(5) Reporting as to the manner of compliance;

(6) Posting notices in conspicuous places in the respondent's place of business in the form prescribed by the commission and inclusion of such notices in advertising material;

(7) Payment to the complainant of damages for an injury, including humiliation and embarrassment, caused by the discriminatory practice, and costs, including reasonable attorney's fees;

(8) Other remedies that are necessary and proper to eliminate all discrimination identified by the evidence submitted at the hearing or in the record; and

(9)

(A) In cases involving discriminatory housing practices only, payment by the respondent of a civil penalty in an amount not exceeding:

(i) Ten thousand dollars (\$10,000) if the respondent has not been adjudged to have committed prior unlawful discriminatory housing practices;

(ii) Twenty-five thousand dollars (\$25,000) if the respondent has been adjudged to have committed one (1) other unlawful discriminatory housing practice during the five-year period ending on the date of the filing of the complaint; or

(iii) Fifty thousand dollars (\$50,000) if the respondent has been adjudged to have committed two (2) or more unlawful discriminatory housing practices during the seven-year period ending on the date of the filing of the complaint; and

(B) If the acts constituting the discriminatory housing practice that is the object of the complaint are committed by the same natural person who has been previously adjudged to have committed acts constituting an unlawful discriminatory housing practice, then the civil penalties set forth in subdivisions (a)(9)(A)(ii) and (iii) may be imposed without regard to the period of time within which a subsequent discriminatory housing practice occurred.

(b) The commission may publish, or cause to be published, the names of persons who have been determined to have engaged in a discriminatory practice.

(c) This section applies only to matters pending before the commission prior to July 1, 2025, and is repealed and of no legal effect on or after such date.

4-21-307. Judicial review.

(a) A complainant, respondent, or intervenor aggrieved by an order of the commission, including an order dismissing a complaint or stating the terms of a conciliation agreement, may obtain judicial review, and the commission may obtain an order of the court for enforcement of its order, in a proceeding brought in the chancery court or circuit court in which the alleged discriminatory practice that is the subject of the order occurred or in which a respondent resides or transacts business.

(b)

(1) The proceeding for review or enforcement is initiated by filing a petition in court.

(2) Copies of the appeal must be served upon the attorney general and all parties of record.

(3) Within thirty (30) days after the service of the petition for appeal upon the commission or its filing by the commission, or within such further time as the court may allow, the commission shall transmit to the court the original or a certified copy of the entire record upon which the order is based, including a transcript of testimony, which need not be printed.

(4) By stipulation of all parties to the review proceeding, the record may be shortened.

(5) The findings of fact of the commission are conclusive unless clearly erroneous in view of the probative and substantial evidence on the whole record.

(6) The court is authorized power to grant such temporary relief or restraining order as it deems just and to enter an order enforcing, modifying and enforcing as modified, or setting aside in whole or in part the order of the commission.

(7) All such proceedings must be heard and determined by the chancery court or circuit court and court of appeals as expeditiously as possible and with lawful precedence over other matters.

(c)

(1) The court shall not consider a matter not considered by, nor an objection not raised before, the hearing examiner or examiners unless the failure of a party to present the matter to or raise the objection before the hearing examiner or examiners are excused because of good cause shown.

(2) A party may move the court to grant leave to adduce additional specified material evidence, and the court may grant leave for the parties to adduce such evidence pursuant to the Tennessee Rules of Civil Procedure; provided, that the moving party shows good cause for failure to adduce such evidence before the commission.

(d)

(1) The jurisdiction of the chancery court or circuit court is exclusive, and its final judgment or decree is subject to review by the court of appeals as provided by the Tennessee Rules of Civil Procedure.

(2) The commission's copy of the testimony is available to all parties for examination without cost during business hours at the commission's office in Nashville.

(e)

(1) A proceeding under this section must be initiated within thirty (30) days after a copy of the order of the commission is petitioned or the petition is filed under § 4-21-304.

(2) If a proceeding is not initiated, then the commission may obtain a decree of the court of enforcement of its order upon showing that a copy of the petition for enforcement was served on the respondent and the respondent is subject to the jurisdiction of the court.

(f) This section applies only to orders lawfully entered by the commission prior to July 1, 2025.

4-21-308. Records.

(a) As part of an investigation of a complaint filed under this chapter and at a reasonable time, the commission or its designated representative may request access to premises, records, and documents relevant to the complaint and the right to examine a photograph and copy evidence.

(b) Every person subject to this chapter shall:

(1) Make and keep records relevant to the determination of whether discriminatory practices have been or are being committed;

(2) Preserve the records for such periods; and

(3) Make reports therefrom, as the commission prescribes by rule or order, as reasonably necessary, or appropriate for the enforcement of this chapter or the rules or orders thereunder.

(c) To avoid undue burdens on persons subject to this chapter, records and reports required by the commission under this section must conform as near as may be to similar records and reports required by federal and state laws, and to customary recordkeeping practices.

(d) If a person fails to permit access, examination, photographing, or copying; fails to make, keep, or preserve records; or fails to make reports in accordance with this section, then the chancery court in Davidson county or the chancery court or circuit court for the county in which such person is found, resides, or has such person's principal place of business, upon application of the commission, may issue an order requiring compliance.

(e) The commission, by rule, shall require each person who is subject to this chapter and who controls an apprenticeship or other training program to keep all records reasonably necessary to carry out this chapter, including, but not limited to, a list of applicants who apply to participate in the program, including the chronological order in which applications were received. Such persons shall also furnish to the commission upon request, a detailed description of the manner in which persons are selected to participate in the apprenticeship or other training programs.

(f) A person who believes that the application of a rule or order issued under this section would result in undue hardship for the person may apply to the commission for an exemption from the application of the rule or order. If the commission finds the application of the rule or order to the person in question would impose an undue hardship, then the commission may grant appropriate relief.

(g) This section applies only to matters pending before the commission prior to July 1, 2025, and is repealed and of no legal effect on or after such date.

4-21-309. Subpoenas – Depositions.

(a)

(1) Upon written application to the commission, a party to a proceeding is entitled as of right to the issuance of subpoenas for deposition or hearing in the name of the commission by an individual designated pursuant to its rules requiring attendance and the giving of testimony by witnesses and the production of documents.

(2) A subpoena issued pursuant to subdivision (a)(1) must show on its face the name and address of the party at whose request the subpoena is directed.

(3) Upon the petition of the person to whom the subpoena is directed and upon notice to the requesting party, the commission or an individual designated pursuant to its rules may vacate or modify the subpoena.

(4) Depositions of witnesses must be taken in accordance with the Tennessee Rules of Civil Procedure.

(5) Witnesses whose depositions are taken, or who are summoned before the commission or its agents, are entitled to the same witness and mileage fees as are paid to the witnesses subpoenaed in chancery court.

(b) If a person fails to comply with a subpoena issued by the commission, then the chancery court or circuit court of the county in which the person is found, resides, or has the person's principal place of business, upon application of the commission or the party requesting the subpoena, may issue an order requiring compliance. In a proceeding brought under this section, the court may modify or set aside the subpoena.

(c) The procedures in this section apply only to matters pending before the commission prior to July 1, 2025, and are repealed and of no legal effect on or after such date.

4-21-310. Interference.

(a) It is a violation of this chapter for a person to:

(1) Willfully interfere with the performance of a duty or the exercise of a power by the attorney general;

(2) Willfully obstruct or prevent a person from complying with this chapter or an order issued under this chapter; or

(3) Violate the terms of a conciliation agreement made pursuant to this chapter.

(b) An individual employee or agent of an employer is not liable for a civil violation an employer of such person is found to have committed under this section.

(c) A person or a member or representative of the person who willfully resists, prevents, impedes, or interferes with the performance of a duty or the exercise of a power by the attorney general or the attorney general's agent in connection with this chapter commits a Class C misdemeanor.

4-21-311. Private right of action.

(a) A person injured by an act in violation of this chapter has a private right of action in chancery court or circuit court in a county in which the alleged violation occurred, in a county in which a respondent resides or has the respondent's principal place of business, or another chancery court or circuit court of competent jurisdiction.

(b) In an action under subsection (a), the court may issue a permanent or temporary injunction, temporary restraining order, or another order and may award plaintiff actual damages sustained by the plaintiff, and the legal costs incurred by the plaintiff that include a reasonable fee for the plaintiff's attorneys of record, all of which are in addition to other remedies contained in this chapter.

(c) In cases involving discriminatory housing practices, the court may award punitive damages to the plaintiff, in addition to the other relief specified in this section and this chapter.

(d) A civil action brought pursuant to the private right of action under this section must be filed in chancery court or circuit court within one (1) year after the alleged discriminatory practice ceases.

(e) In a private right of action alleging a violation of this chapter, the plaintiff has the burden of establishing a prima facie case of intentional discrimination or retaliation. If the plaintiff satisfies this burden, the burden is then on the defendant to produce evidence that one (1) or more legitimate, nondiscriminatory reasons existed for the challenged employment action. The burden on the defendant is one of production and not persuasion. If the defendant produces such evidence, the presumption of discrimination or retaliation raised by the plaintiff's prima facie case is rebutted, and the burden shifts to the plaintiff to demonstrate that the reason given by the defendant was not the actual reason for the challenged employment action and that the stated reason was a pretext for illegal discrimination or retaliation. Such allocations of burdens of proof apply at all stages of the proceedings, including motions for summary judgment. The plaintiff, at all times, retains the burden of persuading the trier of fact that the plaintiff has been the victim of intentional discrimination or retaliation.

4-21-312 Compensatory damages awarded for nonpecuniary losses – Limitations.

For a private cause of action arising under § 4-21-401, § 8-50-103, or § 50-1-304, the sum of the amount of compensatory damages awarded for future pecuniary losses, emotional pain, suffering, inconvenience, mental anguish, loss of enjoyment of life, and other nonpecuniary losses, must not exceed, for each complaining party:

(1) In the case of a cause of action arising under § 50-1-304 and an employer who has fewer than eight (8) employees at the time the cause of action arose, twenty-five thousand dollars (\$25,000);

(2) In the case of an employer who has eight (8) or more but fewer than fifteen (15) employees at the time the cause of action arose, twenty-five thousand dollars (\$25,000);

(3) In the case of an employer who has more than fourteen (14) and fewer than one hundred one (101) employees at the time the cause of action arose, fifty thousand dollars (\$50,000);

(4) In the case of an employer who has more than one hundred (100) and fewer than two hundred one (201) employees at the time the cause of action arose, one hundred thousand dollars (\$100,000);

(5) In the case of an employer who has more than two hundred (200) and fewer than five hundred one (501) employees at the time the cause of action arose, two hundred thousand dollars (\$200,000); and

(6) In the case of an employer who has more than five hundred (500) employees at the time the cause of action arose, three hundred thousand dollars (\$300,000).

4-21-313. Concurrent actions in state and federal courts.

An employee shall not concurrently maintain a cause of action in state court under § 4-21-401, § 8-50-103, or § 50-1-304, while at the same time prosecuting an action in federal court based on a common nucleus of operative facts. Upon motion of the employer, the state court shall dismiss an action maintained under § 4-21-401, § 8-50-103, or § 50-1-304, in which the employee is concurrently prosecuting an action based on a common nucleus of operative facts in federal court.

SECTION 4. Tennessee Code Annotated, Title 4, Chapter 21, is amended by deleting Part 4 and substituting:

4-21-401. Employers.

(a) It is a discriminatory practice in violation of this chapter for an employer to:

(1) Fail or refuse to hire or discharge a person or otherwise to discriminate against an individual with respect to compensation, terms, conditions, or privileges of employment because of such individual's race, creed, color, religion, sex, age, or national origin; or

(2) Limit, segregate, or classify an employee or applicants for employment to deprive or tend to deprive an individual of employment opportunities or otherwise adversely affect the status of an employee, because of race, creed, color, religion, sex, age, or national origin.

(b) This section does not apply to the employment of an individual by the individual's parent, spouse, or child, or to employment in the domestic service of the employer.

(c) It is not a discriminatory practice for an employer to institute a policy in the employer's workplace requiring that all employees speak only in English if the employer has a legitimate business necessity for such a policy, including, but not limited to, the safe and efficient operation of the employer's business. The employer must first provide notice of the policy to employees and the consequences of violating the policy.

(d)

(1) An employer shall not terminate an employee who is a volunteer rescue squad worker, as defined in § 7-51-210, because the employee, when acting as a volunteer rescue squad worker, is absent or late to the employee's employment in order to respond to an emergency prior to the time the employee is to report to the employee's place of employment.

(2) Notwithstanding subdivision (d)(1), an employer may charge against the regular pay that an employee who is a volunteer rescue squad worker loses from employment because of the employee's response to an emergency.

(3) An employer may request an employee who loses time from the employee's employment to respond to an emergency to provide the employer with a written statement from the supervisor or acting supervisor of the volunteer rescue squad worker stating that the employee responded to an emergency and list the time and date of the emergency.

(4) An employee who is absent or late to the employee's employment in order to respond to an emergency must make a reasonable effort to notify the employee's employer that the employee may be absent or late.

(5) An employee terminated in violation of this section may bring a civil action against the employee's employer. The employee may seek reinstatement to the employee's former position, payment of back wages, reinstatement of fringe benefits, and, where seniority rights are granted, the reinstatement of seniority rights. The employee has one (1) year from the date the alleged violation of this section ceases to file an action.

(e) An individual employee or agent of an employer is not liable for a civil violation of this part that an employer is found to have committed.

4-21-402. Labor organizations.

It is a discriminatory practice in violation of this chapter for a labor organization to:

(1) Exclude or expel from membership, or otherwise to discriminate against, a member or applicant for membership because of race, creed, color, religion, sex, age, or national origin;

(2) Limit, segregate, or classify membership or application for membership or to classify or fail or refuse to refer for employment on the basis of race, creed, color, religion, sex, age, or national origin, in a manner that would deprive or tend to deprive a person of employment opportunities, or that would limit employment opportunities or to otherwise adversely affect the status of an employee or of an applicant for employment because of race, creed, color, religion, sex, age, or national origin; or

(3) Cause or attempt to cause an employer to violate this chapter.

4-21-403. Employment agencies.

It is a discriminatory practice in violation of this chapter for an employment agency to classify or refer for employment, or to fail or refuse to refer for employment, or otherwise to discriminate against a person because of race, creed, color, religion, sex, age, or national origin.

4-21-404. Training programs.

It is a discriminatory practice in violation of this chapter for:

(1) An employer, labor organization, or joint labor-management committee controlling apprenticeship, or on-the-job, or other training or retraining programs, to discriminate against an individual because of race, creed, color, religion, sex, or national origin, in admission to, or employment in, a program established to provide apprenticeship or other training;

(2) An employer, labor organization, employment agency, or joint labor-management committee controlling apprenticeship or other training or retraining programs, including on-the-job training programs, to print, publish, or circulate or cause to be printed, published, or circulated, a statement, advertisement or publication relating to employment by such an employer, or membership in such organization or a classification or referral for employment by such labor organization, or relating to a classification or referral for employment by such an employment agency or relating to admission to, or employment in, a program established to provide apprenticeship or other training by such a joint labor-management committee indicating a preference, limitation, specification, or discrimination based on race, creed, color, religion, sex, or national origin; except, that such advertisement or publication may indicate preference, limitation, or specification based on religion or sex when religion or sex is a bona fide occupational qualification for employment.

4-21-405. Religious organizations.

This chapter does not apply to religious corporations, associations, educational institutions, or societies, with respect to the employment of individuals of a particular religion to perform work connected with the carrying on by the corporation, association, educational institution, or society, of its religious activities.

4-21-406. Bona fide occupational qualifications.

It is not a violation of this chapter for:

- (1) An employer to employ or assign the terms and conditions of employees;
- (2) An employment agency to classify, or refer an individual for employment;
- (3) A labor organization to classify its members or to classify or refer a person for employment; or
- (4) An employer, labor organization, or joint training or retraining programs to admit or employ an individual in such programs on the basis of religion or sex in those certain instances where religion or sex is a bona fide occupational qualification reasonably necessary to the normal operation of that business or enterprise.

4-21-407. Age discrimination.

(a) It is not a violation of this chapter for an employer, employment agency, or labor organization to:

- (1) Discriminate in employment on the basis of age where age is a bona fide occupational qualification reasonably necessary to the normal operation of the business, or where the differentiation is based on reasonable factors other than age; or
- (2) Observe the terms of a bona fide seniority system or a bona fide employee benefit plan, such as a retirement, pension, or insurance plan, that is not a subterfuge to evade the purposes of this chapter, except that no such

employee benefit plan must excuse the failure to hire an individual, and no such seniority system or employee benefit plan must require or permit the involuntary retirement of an individual who is at least forty (40) years of age because of the age of the individual, unless otherwise provided by law.

(b) The prohibitions imposed by this chapter relating to age discrimination in employment are limited to discriminatory practices against individuals who are at least forty (40) years of age.

(c) Notwithstanding this chapter relating to age discrimination in employment, it is not a violation of this chapter for an employer, employment agency, or labor organization subject to this chapter to observe the terms of a bona fide seniority system or a bona fide employee benefit plan, such as a retirement, pension, or insurance plan, that is not a subterfuge to evade the purposes of this chapter, except that such employee benefit plan must not excuse the failure to hire an individual, and such seniority system or employee benefit plan must not require or permit the involuntary retirement of an individual covered by this chapter because of the age of the individual.

(d) The provisions of this chapter relating to age discrimination do not prohibit compulsory retirement of an employee who has attained sixty-five (65) years of age and who, for the two-year period immediately before retirement, is employed in a bona fide executive or a high policymaking position, if such employee is entitled to an immediate nonforfeitable annual retirement benefit from a pension, profit-sharing, savings, or deferred compensation plan, or a combination of such plans, of the employer of such employee, that equals, in the aggregate, at least forty-four thousand dollars (\$44,000).

(e)

(1) It is not a violation of this chapter for an employer subject to this chapter to fail or refuse to hire or to discharge an individual because of the individual's age if such action is taken:

(A) With respect to the employment of an individual as a firefighter or a law enforcement officer and the individual has attained the age of hiring or retirement in effect under applicable state or local law on March 3, 1983; and

(B) Pursuant to a bona fide hiring or retirement plan that is not a subterfuge to evade this chapter.

(2) As used in this subsection (e), unless the context otherwise requires:

(A) "Firefighter" means an employee, the duties of whose position are primarily to perform work directly connected with the control and extinguishment of fires or the maintenance and use of firefighting apparatus and equipment, including an employee engaged in this activity who is transferred to a supervisory or administrative position; and

(B) "Law enforcement officer" means an employee, the duties of whose position are primarily the investigation, apprehension, or detention of individuals suspected or convicted of offenses against state criminal laws, including an employee engaged in this activity who is transferred to a supervisory or administrative position. For the purposes of this subdivision (e)(2)(B), "detention" includes the duties of employees assigned to guard individuals incarcerated in a penal institution.

(3) This subsection (e) does not apply to a cause of action arising under the Age Discrimination in Employment Act of 1967 (29 U.S.C. § 621 et seq.), as in effect before January 1, 1987.

4-21-408. Leave for adoption, pregnancy, childbirth, and infant nursing.

(a) Employees who have been employed by the same employer for at least twelve (12) consecutive months as full-time employees, as determined by the employer at the job site or location, may be absent from such employment for a period not to exceed four (4) months for adoption, pregnancy, childbirth, and nursing an infant, where

applicable, referred to as "leave" in this section. With regard to adoption, the four-month period begins at the time an employee receives custody of the child.

(b)

(1) Employees who give at least three (3) months' advance notice to their employer of their anticipated date of departure for such leave, their length of leave, and their intention to return to full-time employment after leave, must be restored to their previous or similar positions with the same status, pay, length of service credit, and seniority, wherever applicable, as of the date of their leave.

(2) Employees who are prevented from giving three (3) months' advance notice because of a medical emergency that necessitates that leave begin earlier than originally anticipated do not forfeit their rights and benefits under this section solely because of their failure to give three (3) months' advance notice.

(3) Employees who are prevented from giving three (3) months' advance notice because the notice of adoption was received less than three (3) months in advance do not forfeit their rights and benefits under this section solely because of their failure to give three (3) month's advance notice.

(c)

(1) Leave may be with or without pay at the discretion of the employer. Such leave does not affect the employees' right to receive vacation time, sick leave, bonuses, advancement, seniority, length of service credit, benefits, plans, or programs for which the employees were eligible at the date of their leave, and other benefits or rights of their employment incident to the employees' employment position; provided, that the employer need not provide for the cost of benefits, plans, or programs during the period of such leave, unless the employer so provides for all employees on leaves of absence.

(2) If an employee's job position is so unique that the employer cannot, after reasonable efforts, fill that position temporarily, then the employer is not

liable under this section for failure to reinstate the employee at the end of the leave period.

(3) The purpose of this section is to provide leave time to employees for adoption, pregnancy, childbirth, and nursing the infant, where applicable; therefore, if an employer finds that the employee has utilized the period of leave to actively pursue other employment opportunities or if the employer finds that the employee has worked part time or full time for another employer during the period of leave, then the employer is not liable under this section for failure to reinstate the employee at the end of the leave.

(4) Whenever the employer determines that the employee will not be reinstated at the end of the leave because the employee's position cannot be filled temporarily or because the employee has used the leave to pursue employment opportunities or to work for another employer, the employer shall notify the employee.

(d) This section does not:

(1) Affect a bargaining agreement or company policy that provides for greater or additional benefits than those required under this section;

(2) Apply to an employer who employs fewer than one hundred (100) full-time employees on a permanent basis at the job site or location; or

(3) Diminish or restrict the rights of teachers to leave pursuant to title 49, chapter 5, part 7, or to return or to be reinstated after leave.

(e) This section must be included in an employee handbook published by the employer after May 27, 2005.

4-21-409. Employee not authorized to work in the United States.

If an employer discovers that an employee is not authorized to work in the United States under federal immigration laws through results produced by the E-Verify program, as defined in § 50-1-702, or otherwise, and discharges the employee based on

immigration status, then the employee does not have a cause of action for discrimination based on national origin for the discharge under this part.

SECTION 5. Tennessee Code Annotated, Title 4, Chapter 21, is amended by deleting Part 5 and substituting:

4-21-501. Prohibition.

Except as otherwise provided in this chapter, it is a discriminatory practice in violation of this chapter for a person to deny an individual the full and equal enjoyment of the goods, services, facilities, privileges, advantages, and accommodations of a place of public accommodation, resort, or amusement on the grounds of race, creed, color, religion, sex, age, or national origin.

4-21-502. Advertisements.

It is a discriminatory practice in violation of this chapter for a person, directly or indirectly, to publish, circulate, issue, display, or mail or cause to be published, circulated, issued, displayed, or mailed a written, printed, oral, or visual communication, notice or advertisement that indicates that the goods, services, facilities, privileges, advantages and accommodations or a place of public accommodation, resort, or amusement will be refused, withheld from, or denied an individual on account of the individual's race, creed, color, religion, sex, or national origin; or that the patronage of, or presence at, a place of public accommodation, resort, or amusement, of an individual on account of the individual's race, creed, color, religion, sex, age, or national origin is objectionable, unwelcome, unacceptable, or undesirable.

4-21-503. Sex segregation.

This part does not prohibit segregation on the basis of sex:

(1) Of bathrooms, locker rooms, shower facilities, health clubs, and rooms or spaces for sleeping or changing clothes; and

(2) In places of public accommodation specifically exempted in writing by the attorney general.

SECTION 6. Tennessee Code Annotated, Title 4, Chapter 21, is amended by deleting Part 6 and substituting:

4-21-601. Housing practices – Disabled persons – Home insurance – Civil actions.

(a) It is a discriminatory practice in violation of this chapter for a person, because of race, color, creed, religion, sex, disability, familial status, or national origin, to:

(1) Refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, real property or a housing accommodation to a person;

(2) Discriminate against a person in the terms, conditions, or privileges of sale, or rental of real property or a housing accommodation, or in the provision of services or facilities in connection therewith;

(3) Refuse to receive or transmit a bona fide offer to purchase, rent, or lease real property or a housing accommodation from a person;

(4) Represent to a person that real property or a housing accommodation is not available for inspection, sale, rental, or lease when in fact it is so available, or to refuse to permit a person to inspect real property or a housing accommodation;

(5) Make, print, publish, circulate, post, or mail or cause to be made, printed, published, circulated, posted, or mailed a notice, statement, advertisement, or sign, or use a form of application for the purchase, rental, or lease of real property or a housing accommodation, or make a record of inquiry in connection with the prospective purchase, rental, or lease of real property or a housing accommodation, that indicates, directly or indirectly, a limitation, specification, or discrimination as to race, color, creed, religion, sex, disability, familial status, or national origin or an intent to make such a limitation, specification, or discrimination;

(6) Offer, solicit, accept, use, or retain a listing of real property or a housing accommodation for sale, rental, or lease with the understanding that a person may be discriminated against in the sale, rental, or lease of that real property or housing accommodation or in the furnishing of facilities or services in connection therewith; or

(7) Deny a person access to, or membership or participation in, multiple-listing services, a real estate brokers' organization, or other service, organization, or facility relating to the business of selling or renting dwellings, or to discriminate against such person in the terms or conditions of such access, membership, or participation.

(b)

(1) It is a discriminatory practice in violation of this chapter for a person to:

(A) Discriminate in the sale or rental of, or otherwise make unavailable or deny, a dwelling to a buyer or renter because of a disability of:

(i) The buyer or renter;

(ii) A person residing in or intending to reside in the dwelling after it is so sold, rented, or made available; or

(iii) A person associated with the buyer or renter; or

(B) Discriminate against a person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with such dwelling, because of a disability of:

(i) The person;

(ii) A person residing in or intending to reside in the dwelling after it is so sold, rented, or made available; or

(iii) A person associated with the person.

(2) For purposes of this subsection (b), "discriminate" includes:

(A) Refusing to permit, at the expense of the disabled person, reasonable modifications of existing premises occupied or to be occupied by such person if such modifications may be necessary to afford such person full enjoyment of the premises; except, that in the case of a rental, a modification does not need to be permitted unless the renter first agrees to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted, unless previously negotiated with the landlord;

(B) Refusing to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling; or

(C) In connection with the design and construction of covered multifamily dwellings for first occupancy after March 13, 1991, failing to design and construct those dwellings in such a manner that:

(i) The dwellings have at least one (1) building entrance on an accessible route, unless it is impractical to do so because of terrain or unusual site characteristics; or

(ii) With respect to dwellings with a building entrance on an accessible route:

(a) The public use and common use portions of such dwellings are readily accessible to and usable by disabled persons;

(b) All the doors designed to allow passage into and within all premises within such dwellings are

sufficiently wide to allow passage by disabled persons in wheelchairs; and

(c) All premises within such dwellings contain the following features of adaptive design:

(1) An accessible route into and through the dwelling;

(2) Light switches, electrical outlets, thermostats, and other environmental controls in accessible locations;

(3) Reinforcements in bathroom walls to allow later installation of grab bars; and

(4) Usable kitchens and bathrooms, such that an individual in a wheelchair can maneuver about the space.

(3) Compliance with the appropriate requirements of the American National Standard for buildings and facilities providing accessibility and usability for physically disabled people, commonly cited as ANSI A117.1, satisfies the requirements of subdivision (b)(2)(C)(ii).

(4) As used in this subsection (b), "covered multifamily dwellings" means:

(A) Buildings consisting of four (4) or more units if such buildings have one (1) or more elevators; and

(B) Ground floor units in other buildings consisting of four (4) or more units.

(5) This subsection (b) does not require that a dwelling be made available to an individual whose tenancy would constitute a direct threat to the health or safety of other individuals or whose tenancy would result in substantial physical damage to the property of others.

(c) It is a discriminatory practice in violation of this chapter for a person in the business of insuring against hazards to refuse to enter into, or discriminate in the terms, conditions, or privileges of, a contract of insurance against hazards to a housing accommodation or real property because of the race, color, creed, religion, sex, or national origin of the person owning, or residing in or near the housing accommodations or real property.

(d) It is a discriminatory practice in violation of this chapter for a person to coerce, intimidate, threaten, or interfere with a person in the exercise or enjoyment of, or on account of such person's having exercised or enjoyed, or on account of such person's having aided or encouraged another person in the exercise or enjoyment of, a right granted or protected by this chapter.

4-21-602. Housing practices – Exemptions.

(a) Section 4-21-601 does not apply to:

(1) The rental of housing accommodations in a building that contains housing accommodations for not more than two (2) families living independently of each other, if the owner or a member of the owner's family resides in one (1) of the housing accommodations;

(2) The rental of one (1) room or one (1) rooming unit in a housing accommodation by an individual if the individual or a member of the individual's family resides therein or, as regards to sex, rooms, or rental units, where the tenants would be required to share a common bath or shower;

(3) A religious organization, association, or society, or a nonprofit institution or organization operated, supervised, or controlled by or in conjunction with a religious organization, association, or society, that limits the sale, rental, or occupancy of dwellings that it owns or operates for other than a commercial purpose to persons of the same religion, or that gives preference to such

persons, unless membership in such religion is restricted on account of race, color, or national origin; or

(4) As regards to sex, the rental of housing accommodations of single-sex dormitory rental properties, including, but not limited to, those dormitories and housing facilities operated by a school.

(b) This chapter does not require a real estate operator to negotiate with an individual who has not shown evidence of financial ability to consummate the purchase or rental of a housing accommodation.

(c) Subsection (a) does not prohibit the use of attorneys, escrow agents, abstractors, title companies, and other such professional assistance as necessary to perfect or transfer title.

(d)

(1) This part does not limit the applicability of reasonable local, state, or federal restrictions regarding the maximum number of occupants permitted to occupy a dwelling. This part, with regard to familial status, does not apply with respect to dwellings provided under a state or federal program specifically designed and operated to assist elderly persons, as defined in the state or federal program, or to housing for older persons.

(2) As used in this subsection (d), "housing for older persons" means housing communities consisting of dwellings:

(A)

(i) Intended for, and at least ninety percent (90%) occupied by, at least one (1) person fifty-five (55) years of age or older per unit;

(ii) Providing significant facilities and services specifically designed to meet the physical or social needs of such persons;
and

(iii) Publishing and adhering to policies and procedures that demonstrate an intent by the owner or manager to provide housing for persons fifty-five (55) years of age or older; or

(B) Intended for and occupied solely by persons sixty-two (62) years of age or older.

(3) This part does not prohibit conduct against a person because the person has been convicted by a court of competent jurisdiction of the illegal manufacture or distribution of a controlled substance as defined in § 102 of the Controlled Substances Act (21 U.S.C. § 802), or controlled substance or controlled substance analogue, as defined in the Tennessee Drug Control Act of 1989, compiled in title 39, chapter 17, part 4.

4-21-603. Discriminatory representations.

It is a discriminatory practice in violation of this chapter for a real estate operator, a real estate broker, a real estate salesperson, a financial institution, an employee of such persons and entities, or another person, for the purpose of inducing a real estate transaction from which such person may benefit financially, to:

(1) Represent that a change has occurred or will or may occur in the composition with respect to race, color, creed, religion, sex, disability, familial status, or national origin of the owners or occupants in the block, neighborhood, or area in which the real property is located; or

(2) Represent that such change will or may result in the lowering of property values, an increase in criminal or antisocial behavior, or a decline in the quality of schools in the block, neighborhood, or area in which the real property is located.

4-21-604. Restrictive covenants and conditions.

(a) Every provision in an oral agreement or a written instrument relating to real property that purports to forbid or restrict the conveyance, encumbrance, occupancy, or

lease thereof to individuals of a specified race, color, creed, religion, sex, or national origin is void.

(b) Every condition, restriction, or prohibition, including a right of entry or possibility of reverter, that directly or indirectly limits the use or occupancy of real property on the basis of race, color, creed, religion, sex, or national origin is void, except a limitation of use on the basis of religion of real property held by a religious institution or organization or by a religious or charitable organization operated, supervised, or controlled by a religious institution or organization, and used for religious or charitable purposes.

(c) It is a discriminatory practice in violation of this chapter to insert in a written instrument relating to real property a provision that is void under this section or to honor or attempt to honor such a provision in the chain of title.

4-21-605. Agents.

It is no defense to a violation of this chapter by a real estate operator, real estate broker, real estate salesperson, financial institution, or other person subject to this chapter that the violation was requested, sought, or otherwise procured by a person not subject to this chapter.

4-21-606. Residential real estate transactions.

(a) It is a discriminatory practice in violation of this chapter for a person or other entity whose business includes engaging in residential real estate-related transactions to discriminate against a person in making available such transaction, or in the terms and conditions of such transaction, because of race, color, creed, religion, sex, disability, familial status, or national origin.

(b) As used in this section, "residential real estate-related transaction" means:

(1) The making or purchasing of loans or providing financial assistance:

(A) For purchasing, constructing, improving, repairing, or maintaining a dwelling;

(B) Where the security is residential real estate; or

(2) The selling, brokering, or appraising of residential real estate.

4-21-607. Realtors – Notice to real estate commission.

Where a real estate broker or a real estate salesperson has been found by a court to have committed a discriminatory housing practice in violation of § 4-21-601 or § 4-21-603, the real estate broker or salesperson shall notify the real estate commission of the violation in writing.

SECTION 7. Tennessee Code Annotated, Title 4, Chapter 21, is amended by deleting Part 7 and substituting:

4-21-701. Malicious harassment.

(a) The attorney general may bring a cause of action for malicious harassment in a court of competent jurisdiction.

(b) A person commits malicious harassment when, because of another person's race, color, ancestry, religion, or national origin, the person purposely or knowingly, with the intent to intimidate another person in relation to the free exercise or enjoyment of a right or privilege secured by the constitution or laws of the United States or this state:

(1) Injures or threatens to injure another person;

(2) Coerces another person; or

(3) Damages, destroys, or defaces real or personal property of another person or public property.

(c) A person committing malicious harassment in violation of this section is subject to a civil penalty of not more than ten thousand dollars (\$10,000) per violation and not more than ten thousand dollars (\$10,000) per victim recoverable by the state. In addition, the court may order payment of damages caused by the violator and other appropriate sanction.

4-21-702. Other remedies.

The remedy for malicious harassment provided in this part is in addition to, and must not preclude victims from seeking other remedies, criminal or civil, otherwise available under the law.

SECTION 8. Tennessee Code Annotated, Title 4, Chapter 21, is amended by deleting Part 8 and substituting:

4-21-801. Short title.

This part is known and may be cited as the "Civil Rights Act of 1990."

4-21-802. State activities.

(a) A state official, employee, or agency shall not sponsor or organize a meeting or other activity, the purpose of which is related to state business, including an athletic competition, in an establishment or facility that does not afford full membership rights and privileges to a person because of sex, race, creed, color, religion, ancestry, national origin, or disability.

(b) State funds must not be expended in connection with a meeting or other activity held at an establishment or facility that does not afford full membership rights and privileges to a person because of sex, race, creed, color, religion, ancestry, national origin, or disability.

(c) A state official, employee, or agent must not be reimbursed for dues or other expenses incurred at an establishment or facility that does not afford full membership rights and privileges to a person because of sex, race, creed, color, religion, ancestry, national origin, or disability.

(d) This section does not apply to state officials, employees, or agents acting in the course of ongoing law enforcement, code enforcement, or other required investigations and inspections.

(e) As used in this section, a "state official" is a person who holds an elected or appointed position in state government.

4-21-803. State commercial agreements.

(a) A state official, employee, or agent shall not enter into a commercial agreement on behalf of the state with a club that denies to a person entry, use of facilities, or membership, or unreasonably prevents the full enjoyment of such club on the basis of sex, race, creed, color, religion, ancestry, national origin, or disability.

(b) Prior to entering into a commercial agreement with the state, a club must file a statement, verified by the president or chief executive officer of the club, that it does not deny a person entry, use of facilities, or membership, or unreasonably prevents the full enjoyment of such club on the basis of sex, race, creed, color, religion, ancestry, national origin, or disability.

4-21-804. Colleges and universities – Adjunct organizations.

An adjunct organization, including, but not limited to, booster groups, of a state university, community college, or institution of higher learning shall not enter into a contract on behalf of, or purchase membership for, an employee of such university, college, or institution of higher learning to a club that denies to a person entry, use of facilities, or membership, or unreasonably prevents the full enjoyment of such club on the basis of sex, race, creed, color, religion, ancestry, national origin, or disability.

4-21-805. Civil actions.

(a)

(1) The attorney general or a person who is discriminated against in violation of this part may enforce this part by bringing a civil action.

(2) A person found to violate this part is liable for the actual damages caused by the violation and such other amount as may be determined by a jury or a court sitting without a jury, but in no case less than two hundred fifty dollars (\$250), and, in addition thereto, reasonable attorneys' fees and court costs as may be determined by the court.

(b)

(1) A person who commits an act or engages in a pattern and practice of discrimination in violation of this part may be enjoined therefrom by a court of competent jurisdiction.

(2) An action for injunction under this subsection (b) may be brought by a person who is discriminated against in violation of this part by the state, or by a person or entity that will fairly and adequately represent the interests of the protected class.

(c) This part does not preclude a person from seeking other remedies, penalties, or procedures provided by law. Criminal penalties must not attach for a violation of this part.

4-21-806. Religious organizations.

(a) This part does not prohibit a religious organization or an organization operating solely for religious, charitable, educational, or social welfare purposes from restricting membership or facilities to persons of the same religious faith, where necessary to promote the religious principles under which it was established and is currently maintained.

(b) This exemption applies only to organizations whose primary purpose is to serve members of a particular religion.

SECTION 9. Tennessee Code Annotated, Title 4, Chapter 21, is amended by deleting Part 9.

SECTION 10. Tennessee Code Annotated, Title 4, Chapter 21, is amended by deleting Part 10 and substituting:

4-21-1001. Short title.

This part is known and may be cited as the "Tennessee Anti-Slapp Act."

4-21-1002. Legislative findings.

(a) It is the intent of the general assembly to provide protection for individuals who make good faith reports of wrongdoing to appropriate governmental bodies.

Information provided by citizens concerning potential misdeeds is vital to effective law enforcement and the efficient operation of government.

(b) The general assembly finds that the threat of a civil action for damages in the form of a "strategic lawsuit against political participation" (SLAPP), and the possibility of considerable legal costs, can act as a deterrent to citizens who wish to report information to federal, state, or local agencies. SLAPP suits can effectively punish concerned citizens for exercising the constitutional right to speak and petition the government for redress of grievances.

4-21-1003. Immunity – Recovery of costs.

(a) A person who, in furtherance of such person's right of free speech or petition under the Constitution of Tennessee or United States Constitution in connection with a public or governmental issue, communicates information regarding another person or entity to an agency of the federal, state, or local government regarding a matter of concern to that agency is immune from civil liability on claims based upon the communication to the agency.

(b) The immunity conferred by this section must not attach if the person communicating such information:

- (1) Knew the information to be false;
- (2) Communicated information in reckless disregard of its falsity; or
- (3) Acted negligently in failing to ascertain the falsity of the information if such information pertains to a person or entity other than a public figure.

(c) A person prevailing upon the defense of immunity provided for in this section is entitled to recover costs and reasonable attorneys' fees incurred in establishing the defense.

4-21-1004. Intervention – Governmental agency – Attorney general.

(a) To protect the free flow of information from citizens to their government, an agency receiving a complaint or information under § 4-21-1003 may intervene and

defend against a suit precipitated by the communication to the agency. If a local government agency does not intervene in and defend against a suit arising from a communication protected under this part, then the office of the attorney general and reporter may intervene in and defend against the suit.

(b) An agency prevailing upon the defense of immunity provided for in § 4-21-1003 is entitled to recover costs and reasonable attorneys' fees incurred in establishing the defense. If the agency fails to establish such defense, then the party bringing the action is entitled to recover from the agency costs and reasonable attorneys' fees incurred in proving the defense inapplicable or invalid.

SECTION 11. Tennessee Code Annotated, Title 4, Chapter 21, is amended by adding the following as a new part:

4-21-1101. Education.

It is a discriminatory practice in violation of this chapter for a person to:

- (1) Exclude an individual from participation in, deny an individual the benefits of, or subject an individual to discrimination under a program or activity operated by a school on the basis of race, color, or national origin; or
- (2) Deny admission to a school or a school program or activity, or subject an individual to discrimination in admission or recruitment to a school or a school program or activity on the basis of race, color, or national origin.

SECTION 12. Tennessee Code Annotated, Title 4, Chapter 21, is amended by adding the following as a new part:

4-21-1201. Dissolution of the commission – Winding up – Pending matters.

(a)

- (1) Not later than June 30, 2025, all commission procedures, reports, functions, duties, and records, including, but not limited to, all the commission's case files, must be transferred to the office of the attorney general and reporter. The attorney general is not required to carry out procedures, functions, or duties

no longer required by this chapter on or after July 1, 2025.

(2) As part of the transfer of procedures, reports, functions, duties, and records in conjunction with subdivision (a)(1):

(A) The commission and its employees shall fully cooperate with the office of the attorney general and reporter in the execution of this chapter by timely providing requested information and sharing relevant documents and data; and

(B) The attorney general must have access to all documents, data, information, and physical office locations of the commission.

(3) The transfer or sharing of documents, data, records, or other information pursuant to this section does not waive an applicable privilege from disclosure.

(4) If the attorney general determines that a contract, agreement, memorandum of understanding, or lease entered into by the commission prior to July 1, 2025, and still in effect on July 1, 2025, is necessary or appropriate to achieve the purposes of this chapter, then the commission shall assign all rights and duties of such contracts, agreements, memoranda of understanding, or leases to the office of the attorney general and reporter as a successor in interest. The commission shall submit a list and copies of the contracts, agreements, memoranda of understanding, or leases entered into by the commission to the attorney general that will be in effect on July 1, 2025, or subsequent to such date. A contract entered into by the commission must not be assigned to the office of the attorney general and reporter without the attorney general's approval.

(b)

(1) Any complaint that is pending before the commission on June 30, 2025, is terminated and is of no legal effect.

(2) If the commission did not hold a hearing on the pending complaint, the complainant may re-file the complaint with the office of the attorney general or file a private civil action pursuant to § 4-21-311 within ninety (90) days of July 1, 2025.

(3) If the commission held a hearing on the pending complaint, then the commission must issue a final order no later than June 30, 2025. Should the commission fail to issue a final order on a case for which it has held a hearing, the complaint must be considered dismissed by the commission without prejudice by operation of law.

(c)

(1) All lawful orders issued by the commission prior to July 1, 2025, and the remedies included therein remain valid and effective if the commission could lawfully issue such order. The attorney general is authorized to enforce the terms of the orders and may investigate an alleged failure to comply with such orders.

(2) All final orders entered by the commission prior to July 1, 2025, may be subject to judicial review as provided in § 4-21-307.

(d) All conciliation agreements entered into by the commission prior to July 1, 2025, remain valid and may be enforced pursuant to this chapter.

(e) As soon as practicable, but not later than June 30, 2025, the commission shall send written notice to all complainants that the commission will cease to exist on July 1, 2025, and pending complaints are subject to this section.

(f) The state, as represented by the attorney general, is substituted for the commission in all current actions or proceedings beginning on and after July 1, 2025.

SECTION 13. Tennessee Code Annotated, Section 4-3-1703(b), is amended by deleting the subsection and substituting:

(b) In addition to duties expressly imposed by law upon the department:

(1) The department shall:

(A) Foster the interest of institutions of learning and of industrial, civic, professional, and employee organizations in the improvement of personnel standards in state service;

(B) Make a study of the state service system in those departments of the state government covered by such system and make periodic reports to the governor on recommendations for improvement of the system; and

(C) Make annual reports, and such special reports as it may deem necessary, to the governor and commissioner regarding personnel administration;

(2) It is the responsibility of the department to verify that all state governmental entities comply with the requirements of Title VI of the Civil Rights Act of 1964 (42 U.S.C. § 2000d et seq.) and regulations promulgated pursuant to Title VI;

(3) Notwithstanding another law to the contrary, the department is responsible, pursuant to subdivision (b)(4), for the development of a Title VI implementation plan with participation by protected beneficiaries as may be required by that law or regulations for state governmental entities subject to the requirements of Title VI. To the extent applicable, the plan must include Title VI implementation plans of a subrecipient of federal funds through a state entity. Each state governmental entity shall submit annual Title VI compliance reports and implementation plan updates to the department by October 1, 2025, and each October 1 thereafter. The reporting period must cover the most recent full fiscal year. At least once each year, the department shall publish a cumulative report of its findings and recommendations concerning compliance with the requirements of this section. The cumulative annual report must be distributed

to the governor, to each member of the general assembly, and to each library designated as a depository of state reports and documents;

(4) The department shall:

(A) Review current Title VI monitoring and enforcement procedures in federal and state statutes, rules, regulations, programs, services, and budgetary priorities;

(B) Define and establish the components, guidelines, and objectives of a comprehensive state policy to ensure and to promote present and future compliance with Title VI requirements;

(C) Identify laws, rules, programs, services, and budgetary priorities of this state that conflict with the components, guidelines, and objectives of the comprehensive state policy;

(D) Search for interdepartmental gaps, inconsistencies, and inefficiencies in the implementation of the comprehensive state policy;

(E) Identify new laws, rules, programs, services, and budgetary priorities that are needed to ensure and promote present and future compliance with and enforcement of Title VI;

(F) Serve as the central coordinating agency for executive branch departments and agencies for technical assistance, consultation, and resources to encourage and assist compliance with the requirements of Title VI;

(G) Periodically and systematically audit, review, evaluate, and report on Title VI compliance efforts and outcomes for each executive branch department and agency;

(H) Conduct research, hold public hearings, publish reports, and engage in other activities to inform Tennesseans of the requirements of Title VI;

(I) Investigate allegations of noncompliance with Title VI;

(J) Report annually to the governor and the general assembly concerning the department's activities, findings, and recommendations; and

(K) Engage in other activities to encourage, promote, and assist compliance with the requirements of Title VI; and

(5) Due to the diversity of programs that constitute federal financial assistance, subject to appropriations in the general appropriations act, the department shall provide ongoing training, education, and technical assistance to employees of each state department. The diversity training must include, but not be limited to, health and social services, road maintenance and building, employment issues, housing and related issues, education and education-related issues, and administrative and administrative support functions. In addition, subject to appropriations in the general appropriations act, diversity training must be extended to provide training to subrecipients of federal funds through the state general appropriations act, including local governments, nonprofit organizations, and private businesses.

SECTION 14. Tennessee Code Annotated, Title 4, Chapter 3, Part 17, is amended by adding the following new sections:

4-3-1704. Plans – Reports.

Each state governmental entity subject to the requirements of Title VI of the Civil Rights Act of 1964 (42 U.S.C. § 2000d et seq.), and regulations promulgated pursuant thereto, shall develop a Title VI implementation plan with participation by protected beneficiaries as may be required by such law or regulations. To the extent applicable, the plan must include Title VI implementation plans of subrecipients of federal funds through the state entity. Each such state governmental entity shall submit annual Title VI compliance

reports and implementation plan updates to the department of human resources pursuant to § 4-3-1703(b)(2)-(5).

4-3-1705. Federal funding.

It is the legislative intent that increased costs incurred by state entities as a result of this section must, to the extent legally available, be paid from federal funds available for such costs.

4-3-1706. Discriminatory practices – Agencies or persons receiving federal funds.

It is a discriminatory practice for a state agency receiving federal funds making it subject to Title VI of the Civil Rights Act of 1964 (42 U.S.C. § 2000d et seq.), or for a person receiving such federal funds from a state agency, to exclude a person from participation in, deny benefits to a person, or to subject a person to discrimination under a program or activity receiving such funds, on the basis of race, color, or national origin.

4-3-1707. Discriminatory practices – Complaints.

(a) A person claiming to be aggrieved by a discriminatory practice under this part may file a complaint with the state department, agency, or entity receiving the funds within one hundred eighty (180) days of the occurrence of the alleged discriminatory act. Such complaint filed with a state department, agency, or entity is subject to review by the department of human resources for applicability under Title VI of the Civil Rights Act of 1964 (42 U.S.C. § 2000d et seq.).

(b) A person claiming to be aggrieved by a discriminatory practice under this part may also file a complaint with the department of human resources, in accordance with rules promulgated by the department. If such a complaint is filed with the department of human resources pursuant to this section, then the department shall refer the complaint to the attorney general for further action.

SECTION 15. Tennessee Code Annotated, Section 4-3-1416, is amended by deleting "human rights commission" wherever it appears and substituting "department of human resources".

SECTION 16. Tennessee Code Annotated, Section 68-1-113(a)(4), is amended by deleting "Tennessee human rights commission" and substituting "attorney general".

SECTION 17. Tennessee Code Annotated, Section 8-50-103, is amended by deleting the section and substituting:

(a) This section and § 8-50-104 are known and may be cited as the "Tennessee Disability Act."

(b) There must not be discrimination in the hiring, firing, and other terms and conditions of employment of the state or a department, agency, institution, or political subdivision of the state, or of a private employer, against an applicant for employment based solely upon a physical, mental, or visual disability of the applicant, unless such disability to some degree prevents the applicant from performing the duties required by the employment sought or impairs the performance of the work involved. Furthermore, a blind person must not be discriminated against in such employment practices because the person uses a guide dog. A violation of this subsection (b) is a Class C misdemeanor.

(c) A person claiming to be aggrieved by a discriminatory practice prohibited by this section may file with the office of the attorney general and reporter a complaint pursuant to the process set forth pursuant to § 4-21-204(e). The attorney general is authorized to exercise all powers and duties provided in title 4, chapter 21 in connection with a violation of this section.

(d) For purposes of this section, "employer" means a person employing eight (8) or more persons within the state.

(e) A violation of this section is a violation of title 4, chapter 21.

SECTION 18. Tennessee Code Annotated, Section 4-29-246(a), is amended by deleting subdivision (23).

SECTION 19. Tennessee Code Annotated, Section 4-29-248(a), is amended by inserting the following as a new subdivision:

() Civil rights enforcement division in the office of the attorney general and reporter, created by § 4-21-201;

SECTION 20. Notwithstanding § 4-29-112 or another law to the contrary, the Tennessee human rights commission, created by § 4-21-201, terminates and ceases to exist at the end of the fiscal year ending June 30, 2025.

SECTION 21. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 22. The headings to sections in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in a compilation or publication containing this act.

SECTION 23. This act takes effect upon becoming a law, the public welfare requiring it.